

Anil Kumar vs Smt. Rakhi Gupta & Anr. on 4 March, 2010

Author: Shiva Kirti Singh

Bench: Shiva Kirti Singh, Birendra Prasad Verma

IN THE HIGH COURT OF JUDICATURE AT PATNA

MISCELLANEOUS APPEAL No.641 of 2009

Anil Kumar son of Shri Gopal Prasad, Resident of Jagjiwan Seva
Ashram Sasaram, Police Station Sasaram, District - Rohtas

..... Petitioner / Appellant

VERSUS

1. Smt. Rakhhi Gupta d/o Shri Amirchand Prasad Gupta
2. Sri Amirchand Prasad Gupta son of Ram Jatan Sah
Both resident of Mohalla Mohan Bigha (East), P.O. and Police
Station Dehri-on- Sone, District Rohtas

..... Respondents / Respondents

For the Appellant	: M/s V.Nath & Ashok Kumar, Advocates
For the Respondents	: Mr Raju Giri, Advocate

PRESENT

THE HON'BLE MR JUSTICE SHIVA KIRTI SINGH THE HON'BLE MR JUSTICE BIRENDRA PRASAD VERMA

Shiva Kirti Singh, J. This appeal is against the judgment and order dated 27th March, 2008 by the Principal Judge, Family Court, Sasaram, Rohtas whereby decree for divorce has been passed along with an order for permanent alimony at the rate of Rs.2500/- per month for a four year old son of the appellant and at the same rate for the wife of the appellant and also a decree in favour of the respondent wife for a sum of Rs.one lakh in lieu of value of her ornaments and clothes.

2. The judgment under appeal relates to Matrimonial Suit No.25/05 filed by the appellant, the husband of respondent, under Section 9 of the Hindu Marriage Act seeking restitution of conjugal rights and another Matrimonial Suit No..36/05 filed by the wife, seeking a decree of divorce on the ground of cruelty. From the discussions made in the judgment under appeal and the records, it appears that when efforts for reconciliation failed, a joint petition for divorce was filed under Section 13B of the Hindu Marriage Act but the matter of custody of the son could not be amicably resolved and, therefore, the Family Court was called upon to decide as many as 12 issues relating to both the suits including issues of custody of minor son Aman Kumar, permanent alimony and

whether the wife is entitled to return of her ornaments and clothes as claimed by her.

3. Learned counsel for the appellant did not challenge the decree for divorce allowed by the Principal Judge, Family Court by taking up the stand that since the respondent contested the claim for restitution of conjugal rights and herself sought divorce, it was obvious that the marriage had irretrievably broken down. The Family Court has noted and observed that the appellant gave up his claim for restitution of conjugal rights and in fact, he also asked for grant of a decree of divorce as prayed by the wife. There was no challenge before us even to the issue of custody of the child decided in favour of the respondent wife or maintenance amount of Rs. 2500/- per month for the child. However, the grant of maintenance at the rate of Rs.2500/- per month to the respondent wife and an amount of Rs. one lakh to satisfy her claim for return of her ornaments and clothes was seriously contested and challenged.

4. On the aforesaid two issues which were raised before this Court we heard learned counsel for both the parties and perused the relevant materials. In paragraph 15 of the judgment under appeal the learned Principal Judge has noted the contents of a petition filed by the appellant husband in court below on 5.9.2006 which shows that he has several house properties including a double storied residential house and three storied house having six shops as well as residential quarters, in the town of Sasaram. His family also owns a market having nine rooms and two business establishments, namely, Rohtas Diesel and Rohtas Automobiles. The family has got land in the city of Varanasi as well as a car and a motorcycle. The appellant as well as his father and mother are income tax payees. On the other hand, it has come on record that the respondent wife is studying law and does not have any independent source of income. From the discussions made in paragraphs 33 and 34 of the judgment under appeal it transpires that the respondent claimed a monthly maintenance allowance of Rs.6000- 8000 per month whereas according to learned counsel for the appellant, a monthly allowance of Rs.1000/- would be sufficient for the maintenance of the wife.

5. Considering status and property of the appellant, in our view, the grant of monthly maintenance by way of permanent alimony to the wife at the rate of Rs.2500/- per month is not at all excessive. A lady who was married in a family having several house properties, a car and a motorcycle cannot be asked to lead a wretched life at a monthly allowance of Rs.1000/-. Hence, we find no good ground to doubt the legality and correctness of the judgment and order on the issue of permanent alimony awarded to the respondent wife by way of monthly maintenance at the rate of Rs.2500/-.

6. The only other issue argued by the parties relates to a decree for Rs. one lakh in favour of the respondent wife as a value for her ornaments and clothes. Learned counsel for the appellant has raised a serious objection to this part of judgment and order under appeal both in law as well as on facts. In law, it was submitted that the learned Family Court had no jurisdiction under provisions of the Hindu Marriage Act to grant such a relief to the respondent wife because only provision for the division of properties is under Section 27 of that Act which is applicable to properties gifted at the time of marriage which are owned jointly by the husband and the wife. On facts, it was submitted that in absence of item-wise details and valuation of the ornaments and clothes, the court below committed illegality and impropriety in awarding such a relief.

7. In reply, learned counsel for the respondent referred to Section 7 of the Family Courts Act and a judgment of the Bombay High Court in the case of Sangeeta B. Kadam v. Balkrishna Ramchandra Kadam, AIR 2005 Bombay 262, in support of his contention that jurisdiction of Family Court is wide enough to entertain claim by the wife for her ornaments and clothes even in a proceeding under the Hindu Marriage Act. On facts, it was submitted that in the pleadings made by the respondent wife in her claim for divorce as well as in her written statement in respect of claim for restitution of conjugal rights by the husband, it has been specifically pleaded that before the marriage her father, as per customs, had to present ornaments worth Rs.1.5 lakhs and clothes worth Rs.10000/- and in total, she was given ornaments worth Rs.2 lakhs but all have been kept by her husband and his parents forcibly. Such statement in paragraph 12 of the counter affidavit is supported by the respondent by filing an affidavit. Even in her deposition in Court she has stated that she was turned out of the house in the clothes she was wearing and was not given her ornaments.

8. So far as the legal issue of jurisdiction is concerned, a Family Court has been given jurisdiction under the Family Courts Act to deal with almost all kinds of disputes between members of a family. Explanation to Section 7(1), particularly clause (c) may be usefully extracted for the purpose at hand and ready reference:-

"7 Jurisdiction - (1) Subject to the other provisions of this Act, a Family Court shall -

(a) have and exercise all the jurisdiction exercisable by any district court or any subordinate civil court under any law for the time being in force in respect of suits and proceeding of the nature referred to in the explanation; and

(b) be deemed, for the purposes of exercising such jurisdiction under such law, to be a district court or, as the case may be, such subordinate civil court for the area to which the jurisdiction of the Family Court extends.

Explanation - The suits and proceedings referred to in this sub section are suits and proceedings of the following nature, namely -

(a)

(b)

(c) a suit or proceeding between the parties to a marriage with respect to the property of the parties or of either of them."

9. The judgment of the Bombay High Court in the case of Sangeeta B. Kadam (supra) has also placed reliance upon aforesaid provisions of Section 7 (1) of the Family Courts Act to come to a conclusion that even in a proceeding under the Hindu Marriage Act, the issue of property of the parties or of either of them can be decided by the Family Court and it has jurisdiction for the same. We find ourselves in respectful agreement with the aforesaid view of the Bombay High Court and hold that

under Section 7 (1) of the Family Courts Act, a Family Court can exercise jurisdiction even with respect to a property or claim which may not come under Section 27 of the Hindu Marriage Act. Such claim can include claim by the wife for return of her ornaments and other properties.

10. So far as correctness and propriety of the order for payment of Rupees one lakh passed by the Family Court is concerned, it is noticeable that the objection raised by the counsel for the appellant is only because no list giving details and valuation of the ornaments and clothes has been furnished by the respondent. Such technical objection, in our view, may be valid in an ordinary suit filed by a claimant against another for any property but in the context of a proceeding under the Hindu Marriage Act, particularly a proceeding for divorce between the husband and the wife, it would not be proper to treat such an issue by the same scale of technicalities. In such a suit or proceeding many issues of vital importance relating to physical and emotional well being of the parties occupy higher priority than the ornaments or clothes of one party lying in the house of another. Such mundane matters can be addressed by the parties with cool and objectivity generally after their emotions have stabilized. But by that time the pleadings are generally over and they are required to depose as per their pleadings. In matrimonial disputes, complex issues such as whether the parties should live together or should opt for divorce or who should have custody over child are paramount and of vital significance. A wife who in a disturbed state of affairs could plead only the value of her ornaments and clothes kept by her husband and in-laws, when she was turned out from the matrimonial home, cannot be penalized and it would not be in the interest of justice to reject her claim on a mere technicality that she had failed to furnish a list of her ornaments and clothes along with their item-wise valuation. In such cases, as a matter of fact, preparation of such a list cannot have any sacrosanct value except to lend a reassurance to the court that the technicalities have been cared for and the party has given the details of articles also by way of pleadings.

11. The value of pleadings cannot be undermined in any dispute. All relevant facts need to be pleaded but relevancy of details and the standard of pleadings may vary depending upon nature of the proceeding or dispute as well as the status and condition of the parties. In the present case in the context of ornaments and clothes of a bride, an approximate costs of Rs.1.5 lakh or two lakhs when the marriage was solemnized in the year 2001 when the gold and silver rates were already high, cannot be such a big issue so as to require minute details in the pleadings.

The matter would have been different if there had been no pleading at all for such a claim or if the claim was for unexpected and unusual heavy amount. But that is not the case here.

12. Thus, on proper consideration of both, the issue of jurisdiction as well as propriety of the order, we find no illegality or error in the judgment and order of the Family Court. Hence, we find no merit in this appeal. It is dismissed accordingly but without costs.

(Shiva Kirti Singh, J.)

Birendra Prasad Verma, J. I agree.

(Birendra Prasad Verma, J.)

Patna High Court
The 4th March, 2010
AFR / S.Kumar